Statement of approval conditions

governing the delivery of NZTA approved class 1 learner licence driving courses

October 2026



NZ TRANSPORT AGENCY
WAKA KOTAHI

New Zealand Government
Te Kāwanatanga o Aotearoa

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Purpose

This document is a statement of approval conditions (SOAC) imposed under clause 102 (2) of the *Land Transport (Driver Licensing) Rule 1999* on any individual or organisation approved to conduct NZ Transport Agency Waka Kotahi approved Class 1 learner licence courses.

As this document may be updated periodically, approved course providers (providers) must ensure they always refer to and comply with the current version made available by NZTA. The NZTA website will always have the latest version and NZTA will endeavour to advise all providers of any changes prior to publication. Note that under clauses 102(5) to (7) of the Land Transport (Drivers Licensing) Rule 1999, the Director may also either: impose additional conditions under this SOAC at any time; and/or impose specific 'bespoke' conditions on a provider that does not apply to other providers and/or revoke /amend these conditions or any bespoke conditions.

The purpose of this document is to clarify and supplement any existing requirements contained in associated documentation, legislation, policies and procedures that apply to the approval and ongoing suitability of Class 1 learner licence course providers. This document must therefore be read and applied with any other relevant documents, which may include, but are not limited to, the following list:

- Land Transport Act 1998 (the Act)
- Land Transport (Driver Licensing) Rule 1999 (the Rule)
- Land Transport (Driver Licensing) Amendment Rule 2026
- The Privacy Act 2020
- Health and Safety at Work Act 2015
- The current version of the official New Zealand Road Code
- Children's Act 2014
- Police Act 2008

If a condition in this document conflicts with legislation, the legislation takes precedence. If an approval notice imposes a bespoke condition for a provider or course, that bespoke condition must also be complied with.

Definitions

Act means the Land Transport Act 1998

administrator means a person authorised by a provider to carry out administrative tasks for an approved Class 1 learner licence course, including enrolment, recordkeeping, register maintenance, or certificate-related administration

approved Class 1 learner licence course means a course approved by the Director under clause 96 of the Rule for the purpose described in clause 93(aa)

approved course content means the syllabus, learning outcomes, materials, delivery model, practical component, assessment tools, competency standard, completion rules, records, and review arrangements approved under clause 93 of the Land Transport (Driver Licensing) Rule 1999 by NZTA. Includes any condition imposed on the course under clause 96 (2) of the Land Transport (Driver Licensing) Rule 1999.

approved course requirements means the approved course content, delivery model, assessment arrangements, competency standard, completion process, practical on-road arrangements, recordkeeping arrangements, certificate process, provider-specific approval conditions, and any other course-specific matter approved or specified by NZTA for the approved course as a condition under clause 96(2) of the Land Transport (Driver Licensing) Rule 1999.

assessment evidence means the records, observations, assessment responses, practical assessment records, trainer or assessor notes, technological evidence, or other material used to support an assessment result or course completion decision

assessor means a person authorised by a /provider to assess learners against the approved course requirements. For the practical on-road component, the assessor must hold a current “I” endorsement and class 1 Full driver licence. A person may act as both trainer and assessor if they are authorised and competent to perform both functions and if this is consistent with the approved course requirements.

authorised person means a person authorised by an approved provider, and where required by NZTA, to carry out training, assessment, administration, certificate handling, or another approved course activity

Class 1L licence means a Class 1 learner licence

Class 1R licence means a Class 1 restricted licence

course completion certificate means an NZTA-approved certificate that may only be issued by an approved course provider to a learner who has successfully completed an approved Class 1 learner licence course in accordance with the approved course requirements

course documentation means all records, evidence, forms, assessment material, learner information, certificate records, registers, notes, technological evidence, and other material required to show how an approved Class 1 learner licence course was delivered, assessed, completed, monitored, or administered

Director means the Director of Land Transport

immediate family member means a spouse or partner, parent, child, sibling, grandparent, grandchild, or any other person living in the same household or in a close personal relationship that could reasonably give rise to a conflict of interest

learner means a person enrolled in, undertaking, or completing an approved Class 1 learner licence course. Noting the course provider may assess the learner’s driving experience and skills as a prerequisite for enrolment

NZTA means NZ Transport Agency Waka Kotahi and the powers exercised by the Director and delegates under legislation.

practical on-road component means any part of an approved Class 1 learner licence course that requires a learner to drive on a road as part of training, assessment, or another approved course activity

privacy incident means any actual or suspected unauthorised access, use, disclosure, loss, alteration, destruction, or compromise of personal information held in relation to an approved Class 1 learner licence course

provider means an individual or organisation approved to deliver the approved course under clause 99 of the Rule.

provider approval notice means the written approval issued by NZTA to an approved provider that identifies the approval granted and any provider-specific conditions, requirements, limits, or course details that apply

quality management system means the documented policies, procedures, records, controls, monitoring arrangements, review processes, and corrective action processes used by a provider to ensure approved Class 1 learner licence courses are delivered safely, consistently, fairly, and in accordance with this document, the approved course requirements, and any matter specified by NZTA. A quality management system does not require certification to ISO 9001 or any other external standard unless NZTA expressly requires this in writing

Rule means the Land Transport (Driver Licensing) Rule 1999

security issue means any actual or suspected loss, theft, unauthorised access, copying, disclosure, alteration, destruction, misuse, or compromise of course documentation, assessment material, learner records, registers, or course completion certificates

trainer means a person authorised by an approved provider to deliver training for an approved Class 1 learner licence course in accordance with the approved course requirements. A person may act as both trainer and assessor if they are authorised and competent to perform both functions and if this is consistent with the approved course requirements.

working day means a day other than a Saturday, Sunday, public holiday, or any day in the period beginning on 25 December and ending on 15 January

1. Approval as a Class 1 learner licence course provider

1.1 Pursuant to clauses 99–102 of the Rule, the Director may approve an organisation or individual as a course provider to conduct approved Class 1 learner licence courses to the required standard such that the learner becomes eligible for a time reduction for their learner licence.

1.2 Such approval is subject to any conditions or requirements specified in this document, the Rule, the Act, the provider approval letter, and any other bespoke condition or matter specified in writing by NZTA.

1.3 The provider may only use NZTA approved course content in respect of the delivery of the course. Noting this may be a course either owned and developed by the operator or used with the agreement of the person or organisation that has had that course content approved by NZTA. If the provider wishes to use another approved course, they must give NZTA advice at least 20 days before that occurring.

1.5 Provider approval is for a term of five years. Unless renewed or otherwise continued in writing by NZTA, the approval expires at the end of that period shown on the certificate of approval. A provider must not conduct approved Class 1 learner licence courses or issue course completion certificates after their approval has expired.

1.6 NZTA may specify renewal application requirements, evidence requirements, timeframes, and processes for determining renewal applications. A provider that wishes to continue conducting approved Class 1 learner licence courses beyond the expiry date of its approval must apply for renewal in the form and manner required by NZTA. Submitting a renewal application does not permit the provider to continue conducting courses after expiry unless NZTA renews or otherwise continues the approval in writing.

1.7 Where the provider approval is for an organisation (as opposed to an individual), refer to the special provisions in section 2 of this document.

1.8 Where a provider has a change of physical business address, email address, or phone contact, they must, within five working days, notify NZTA of that change. An organisation that has been removed from the Companies Register must advise NZTA immediately and will not be able to continue operating as a provider.

1.9 Any person approved as an individual course provider must immediately notify NZTA of any change to the status of their driver licence that would preclude them from being able to legally drive on a road (for example disqualification, suspension, revocation or expiry).

2. Organisational approvals

2.1 The organisation is directly responsible and accountable for the actions or inactions of any person it employs, contracts, or engages to conduct Class 1 learner licence courses under its organisational approval.

2.2 An approved course provider organisation must not allow any person it employs, contracts, or engages to deliver, assess, administer, or approve course completion for an approved Class 1 learner licence course unless the organisation has satisfied itself that the person has the necessary skills, training, experience, licence status, authorisation, and competence for that role.

2.3 It is the responsibility of the organisation to ensure that all trainers, assessors, administrators, or other persons involved in conducting courses under its approval have the necessary skills, training, and experience to conduct the specific activities they are carrying out on behalf of the organisation.

2.4 An approved course provider organisation must retain all evidence used to determine a person's appropriate skills, training, experience, licence status, authorisation, and competence for each role they perform on behalf of the organisation.

2.5 The evidence must be retained by the approved organisation for the period of time the person is employed, contracted, or engaged by the organisation and for a period of 18 months thereafter.

2.6 An approved course provider organisation must ensure that any trainer or assessor employed, contracted, or engaged by the organisation holds and continues to hold any relevant and current driver

licence, driving instructor endorsement (for on road assessments), authorisation, or other requirement specified by NZTA for the approved Class 1 learner licence course.

2.7 Where there is any change to the status of a licence, endorsement, authorisation, or other requirement that may affect a trainer or assessor's ability to conduct the course, the organisation must:

a. immediately ensure the person ceases conducting the relevant course activity; and

b. within five working days, notify NZTA of the change

2.8 In applying to be an approved course provider, the organisation is required to provide a recorded organisational structure in which accountability and roles are clearly identified, as required by clause 100(b) of the Rule.

2.9 Should that organisational structure change, including where any person joins, leaves, or changes role in relation to the approved course, the approved course provider organisation must, within five working days, notify NZTA in the form or manner required by NZTA.

2.10 The organisation must maintain a register of trainers, assessors, administrators, and any other persons involved in conducting or supporting the approved course, as specified in section 8 of this document.

2.11 The organisation must ensure that all persons involved in conducting or supporting the approved course have read, are fully aware of, and comply with the relevant version of this document, the Rule, the Act, the Privacy Act 2020, the Health and Safety at Work Act 2015, and any other matter specified in writing by NZTA.

3. Fit and proper person requirements

3.1 Approval as a Class 1 learner licence course provider is conditional on NZTA being satisfied that the provider, and any person in control, is a fit and proper person as required by clauses 99, 100 and 102A of the Land Transport (Driver Licensing) Rule 1999 and with regard to sections 30C and 30D of the Land Transport Act 1998, to conduct, control, influence, manage, deliver, assess, administer, or support an approved Class 1 learner licence course.

3.2 For the purposes of this section, a relevant person includes any person who exercises control, significant influence, or material responsibility in relation to the approved course. Depending on the provider's structure, this may include, but is not limited to:

a. the provider, if the provider is an individual or sole trader

b. directors, partners, trustees, committee members, or equivalent governance roles

c. shareholders, owners, or other persons with significant control or influence

d. senior managers or operational leaders responsible for the approved course

e. trainers, assessors, administrators, instructors, or any other authorised person involved in approved course activities; and

f. any other person specified by NZTA whose role may affect public safety, course integrity, certificate integrity, learner safety, or the proper administration of the approved course.

3.3 Any person employed, contracted or otherwise supporting the delivery of classroom / theory training for the course will be subject to a Police vet to determine their fitness to have contact with children and vulnerable adults.

3.4 The provider must take reasonable steps, through its quality management system or other suitable controls, to ensure that each relevant person remains suitable to perform their role. The provider must not allow a relevant person to conduct, control, influence, manage, deliver, assess, administer, or support an approved course activity if the provider knows, or ought reasonably to know, that the person may not satisfy fit and proper person expectations.

3.5 The provider must notify NZTA as soon as practicable, and no later than five working days after becoming aware, of any matter that may affect whether the provider or a relevant person is fit and proper. This duty applies whether or not NZTA may also receive information about the matter through Police vetting, Ministry of Justice checks, licensing records, or another source. This includes, but is not limited to, any criminal charge or conviction, serious driving offence, serious complaint, unsafe or inappropriate conduct, dishonesty, fraud, misleading information, material regulatory non-compliance, privacy breach, health and safety issue, change in control, or other matter that may affect public safety, course integrity, learner safety, or confidence in the driver licensing system.

3.6 The provider must provide NZTA with any declaration, consent, information, evidence, check, explanation, or supporting material reasonably required by NZTA to assess, verify, monitor, or review whether the provider or any relevant person is fit and proper.

3.7 The provider must ensure that information supplied to NZTA for fit and proper person purposes is complete, accurate, and not misleading. The provider must promptly correct any information that becomes inaccurate or incomplete.

3.8 If NZTA is not satisfied that the provider or a relevant person is fit and proper, NZTA may decline approval, impose conditions, require the provider to remove or restrict a person from approved course activities, suspend approval, revoke approval, or take any other action available under this document, the Rule, the Act, or any other applicable legal authority.

4. Quality management system

4.1 The provider must submit a proposed quality management system to NZTA as part of its application for approval. The quality management system must be approved or accepted by NZTA before the provider is approved to conduct an approved Class 1 learner licence course. Once approved, the provider must establish, maintain, and comply with that quality management system. The quality management system must be appropriate to the provider's size, structure, approved course activities, delivery arrangements, risks, and the matters specified by NZTA.

4.2 Compliance with the provider's NZTA-approved or NZTA-accepted quality management system is a condition of approval. A failure to submit, establish, maintain, follow, review, update, or provide evidence of the quality management system may be treated as non-compliance with this document.

4.3 The quality management system must cover the matters required by NZTA, including any matters set out in the NZTA-approved Quality Management System document for approved Class 1 learner licence course providers.

4.4 The provider must ensure that all persons involved in approved course activities understand and follow the parts of the quality management system relevant to their role.

4.5 The provider must keep records that demonstrate the quality management system is being followed and must provide those records to NZTA on request.

4.6 The provider must review and update the quality management system in accordance with NZTA requirements, the approved course requirements, and the provider's own documented review process.

4.7 NZTA may require the provider to provide, amend, or implement any part of the quality management system where NZTA reasonably considers this necessary to support public safety, provider compliance, course integrity, certificate integrity, learner safety, or administration of the driver licensing system.

4.8 The provider must promptly address any deficiency identified in the quality management system and must retain evidence of the corrective action taken.

5. Conducting approved Class 1 learner licence courses

5.1 The provider must maintain such standards of competency and integrity in respect of the provision of the approved Class 1 learner licence course as NZTA considers appropriate.

5.2 The provider must ensure that all approved Class 1 learner licence courses are conducted in accordance with this document, the Rule, the Act, the provider approval letter, the approved course requirements, and any other matter specified in writing by NZTA.

5.3 The provider must not alter or make any material change to the approved course content.

5.4 The provider must not split delivery, assessment, completion decisions, or certificate issue between providers unless NZTA has approved that arrangement in writing.

5.5 The use of the terms trainer and assessor does not require training and assessment to be performed by different people. A provider may allow the same person to deliver training and assess learners, including where the provider is an individual or sole provider, if that person is authorised and competent to perform each activity and meets any licence, endorsement, approval, or other requirement specified by NZTA for that activity.

5.6 The provider must assess each learner, make completion decisions, and issue course completion certificates only in accordance with the approved course requirements.

5.7 A learner must not be credited with completing the course unless the retained course documentation supports that the learner has satisfied all approved course requirements.

5.8 The provider must ensure each course venue is appropriate for the approved course, suitable for the number of learners, and supports safe, fair, accessible, and effective course delivery and assessment.

5.9 Before the course starts, and before any practical on-road activity, the provider must confirm the learner's identity and that the learner holds a current Class 1 learner licence.

5.10 Evidence of the identity and licence checks must be retained with the learner's course documentation.

5.11 When conducting any approved course activity that includes practical driving, the provider must ensure that:

a. the vehicle used is legally able to be used on a road

b. the vehicle has a current warrant of fitness and registration, and is maintained in a safe and roadworthy condition

c. all legal requirements relating to the vehicle and its use on the road are complied with; and

d. the learner is carrying a current Class 1 learner licence

5.12 The provider must conduct any practical on-road component in accordance with the approved course requirements, including any approved route-selection process, practical session plan, safety controls, intervention rules, and assessment arrangements.

5.13 The provider must retain records for any practical on-road component in accordance with section 7 and the approved course requirements.

5.14 Where the learner has not successfully completed any required assessment or practical component, the provider must record the evidence and reasons supporting that outcome.

5.15 The provider must ensure that learner-facing information, advertising, enrolment material, and course communications are accurate, not misleading, and consistent with the approved course requirements.

6. Trainer and assessor requirements

6.1 The provider must ensure that each trainer and assessor is authorised, competent, suitable, and appropriately experienced to perform their role before they conduct any approved course activity.

6.2 The provider must ensure that any trainer or assessor (who does not hold a driving instructor "I" endorsement) that may conduct approved course activities involving learners under 18 years of age has provided consent for:

a. an initial Police vet; and

b. NZTA to receive and consider updated Police vetting information, including information obtained through annual Police vetting, while the person remains employed, contracted, engaged, authorised, or used by the provider in that role.

NZTA must have completed the initial Police vetting assessment and confirmed the person is suitable before the provider allows the person to conduct those activities.

6.3 Police vetting information, including any updated information, will be received and considered by NZTA. The provider must not receive, request, access, use, or retain Police vetting results or information. NZTA will notify the provider whether the person is suitable to conduct the relevant approved course activities and may require the provider to restrict or cease the person's involvement. NZTA will not provide the provider with specific Police vetting information except where disclosure is lawful and necessary.

6.4 The provider must promptly notify NZTA when a trainer or assessor who is being Police vetted for approved course activities ceases to be employed, contracted, engaged, authorised, or used by the provider for those activities.

6.5 Unless the trainer or assessor holds a current relevant driving instructor "I" endorsement, the provider must retain evidence that the person has the qualifications, experience, training, and competence required by NZTA, the approved course requirements, and the provider's quality management system for each role they perform.

6.6 Evidence may include relevant licences or endorsements, training records, assessment or moderation records, supervised delivery records, experience records, role authorisations, refresher training, or any other evidence specified by NZTA or required by the approved course requirements.

6.7 A trainer or assessor who holds a current "I" endorsement is taken to meet the qualification, experience, training, and competence requirements in clauses 6.5 and 6.6. The provider must still verify the endorsement, authorise the person for the relevant role, and maintain the information required by clause 6.9.

6.8 Clause 6.7 does not remove the provider's obligation to verify and record the person's current licence or endorsement status, authorise the person for the relevant approved course role, ensure NZTA has confirmed that any required Police vetting assessment has been completed and that the person is suitable to perform the relevant role, and maintain the trainer and assessor register.

6.9 The provider must record each trainer's and assessor's Police vetting consent status, the date NZTA confirmed the person's suitability, any restriction or cessation instruction issued by NZTA, licence or endorsement status, authorisation, qualifications, experience, training, competence, approved course role, commencement date, cessation date, and role status in the trainer and assessor register. The register must not contain Police vetting results or details.

7. Conducting course training

7.1 Any training forming part of an approved Class 1 learner licence course must be delivered only by:

a. a provider approved by NZTA as an individual course provider; or

b. in the case of an approved course provider organisation, a person authorised by the organisation to deliver that training in accordance with section 2 of this document and the approved course requirements.

7.2 The provider must ensure that all course training is delivered in accordance with the approved course content, approved training material, approved delivery model, this document, and any other condition or matter specified in writing by NZTA.

7.3 The provider must ensure that any person delivering course training has access to the current approved training material, trainer guidance, learner material, and any other approved course material needed to deliver the training.

7.4 Training or training activities must not be delivered by distance learning, online learning, self-directed learning, or any other alternative delivery method unless that method forms part of the approved course or has been approved in writing by NZTA.

7.5 The provider must ensure that completion of required training activities is recorded and retained with the learner's course documentation.

7.6 The provider must ensure that the practical training is conducted safely, in accordance with the approved course requirements, and by a person who is authorised and competent to conduct that training.

7.7 Training evidence may be used to support course completion only where the approved course requirements allow it. Where assessment evidence is required, the provider must ensure the learner is assessed in accordance with the approved assessment arrangements.

8. Keeping records

8.1 The provider must retain course documentation for each learner, whether the learner successfully completes the course or not, and must maintain records and registers that support the procedures required by clause 101(d) of the Rule. Records and registers may be kept in paper or electronic form, unless NZTA requires specified records, registers, information, or supporting evidence to be entered, uploaded, maintained, or submitted through a particular form, system, or digital portal. Where NZTA requires use of a specified form, system, or digital portal, the provider must use it in the manner and timeframe specified by NZTA.

8.2 The retained course documentation must be sufficient to demonstrate enrolment, identity and licence checks, attendance or participation, training and assessment activity, completion or non-completion decisions, certificate issue, and any other matter required by NZTA, the approved course requirements, or the provider's quality management system.

8.3 The provider must retain completed learner course documentation for a minimum of 18 months from the date the course was completed, unless a longer period is required by law, the provider approval letter, or a written direction from NZTA.

8.4 The course documentation must support any decision that a learner is eligible to receive a course completion certificate.

8.5 The provider must retain records showing the matters specified in clause 101(d) of the Rule, including records relating to instructors, learners, certificates issued, courses conducted, course assessments, and results.

8.6 Where technological evidence is taken or relied on in relation to training, assessment, course delivery, monitoring, or completion decisions, the provider must retain that evidence in accordance with this section, the approved course requirements, and the provider's quality management system.

8.7 During any practical assessment, a learner must not use any feature of a vehicle that performs a task normally carried out by the driver, unless use of that feature is expressly permitted by the approved course requirements or cannot reasonably be disabled. Warning or information systems that do not perform the driving task, such as reversing cameras or audible proximity alerts, may be used unless the approved course requirements state otherwise.

9. Registers

9.1 Learner register
The provider must, in accordance with clauses 101(d) and 102(4)(b) of the Rule, operate and maintain an accurate and current learner register according to the approved QMS. The register must record sufficient information to identify each learner, the course undertaken, relevant course dates, assessment and completion outcomes, certificate issue where applicable and the trainer and assessor.

9.2 Trainer and assessor register
If the provider is an organisation, it must operate and maintain an accurate and current register of trainers,

assessors, administrators, and any other authorised persons involved in conducting or supporting the approved course. The register must record sufficient information to identify each authorised person, their role, relevant licence, endorsement, vetting status, authorisation, approval, qualifications, experience, training, competence, commencement and cessation dates, and any other matter required by NZTA, the approved course requirements, or the provider's quality management system.

9.3 The provider must make the learner register and trainer and assessor register available to NZTA on immediately on request.

10. Course completion records and certificates

10.1 The provider must record and notify successful course completion in the NZTA system, portal, form, or manner specified by NZTA.

10.2 A learner is not eligible for a reduction in time on a learner licence unless course completion has been recorded or notified in the manner required by NZTA and any applicable Driver Licence Register eligibility checks have been satisfied.

10.3 Where NZTA requires use of an online portal, the provider must ensure that course completion information entered into the portal is undertaken in a timely manner and is complete, accurate, and supported by the learner's retained course documentation.

10.4 The provider must not record or notify a learner as having successfully completed the approved course unless the learner has met all approved course requirements and the retained course documentation supports the completion decision.

10.5 The provider must correct any inaccurate, incomplete, duplicate, or erroneous course completion record as soon as practicable after becoming aware of it and must immediately notify NZTA where the error may affect learner eligibility, course integrity, or the Driver Licence Register.

10.6 Unless NZTA specifies otherwise, a course completion certificate or other written confirmation issued by a provider does not itself determine learner eligibility, reduce the time on a learner licence, or override any eligibility decision, portal record, or Driver Licence Register record.

10.7 If NZTA supplies numbered course completion certificates, only certificates allocated to the provider by NZTA may be issued. The provider must account for all allocated and unallocated certificates.

10.8 The provider must not issue a course completion certificate after the provider's approval has expired, been surrendered, suspended, or revoked, unless NZTA has expressly authorised this in writing.

10.9 Certificates must not be transferred from one provider to another.

10.10 The provider must immediately report to NZTA any lost, stolen, misplaced, spoiled, incorrectly issued, or unauthorised certificate, including the numbers of any affected certificates where applicable.

10.11 Any certificate or written confirmation issued to a learner must be completed accurately and must not be misleading about the learner's identity, eligibility or licensing status.

10.12 Where a provider ceases to conduct courses, the provider must return any unused NZTA-issued course completion certificates to NZTA in accordance with section 20.

11. Conflict of interest

11.1 The provider must ensure that neither they, nor any employee, contractor, agent, or any other person directly or indirectly involved with the provider's business, carries out any work or activity that may conflict with, adversely affect, or compromise the proper performance of their responsibilities under this document.

11.2 The provider must ensure that neither they, nor any employee, contractor, agent, or any other person directly or indirectly involved with the provider's business, seeks or accepts any gift, payment, benefit, privilege, concession, or advantage from any learner or person connected with a learner.

11.3 Where any gift, money, benefit, privilege, concession, or advantage is offered by a learner, or a person connected with a learner, the provider must immediately:

a. decline the offer

b. record the details of the declined offer; and

c. notify NZTA

If the offer is made during course delivery, assessment, or certificate issue, the involvement of the affected person in that course activity must cease immediately and NZTA must be advised.

11.4 The provider must not have any financial interest or undertaking that may interfere with or compromise the proper performance of the provider's responsibilities.

11.5 The provider must, within five working days, notify NZTA of any involvement by the provider, or in the case of an organisation, its directors, shareholders, employees, contractors, or agents, where it is known or ought to be known that the involvement may create a conflict with the performance of the provider's responsibilities.

11.6 Under no circumstances is the provider, or any employee, contractor, or agent of the provider, permitted to conduct, assess, make a completion decision, or issue a course completion certificate for:

a. any immediate family member of the provider; or

b. any immediate family member of any employee, contractor, or agent of the provider

11.7 When the provider becomes aware that any situation specified in this section may occur, or may have occurred, the provider must immediately notify NZTA.

11.8 Where training and testing is being undertaken in an organisation with more than one assessor or instructor available, the organisation shall endeavour to ensure a candidate shall not be trained and assessed by the same person.

12. Security

12.1 The provider must ensure that course documentation, assessment material, marking guides, model answers, practical assessment tools, learner records, registers, and course completion certificates are stored securely and managed in accordance with this document, the approved course requirements, and the provider's quality management system. Where a provider becomes aware that there has or may have been a security issue, the provider must immediately investigate the issue and, as soon as practicable, notify NZTA.

12.2 The provider must take all reasonable steps to ensure that approved Class 1 learner licence courses are conducted in a proper manner and are not compromised in any way by cheating, communication or collusion between learners during assessment, impersonation of learners, unauthorised assistance, falsification of records, unauthorised certificate issue, or any other conduct that may compromise course integrity.

12.3 The provider must ensure that:

a. no course assessment questions, assessment tasks, practical assessment tools, marking guides, model answers, or assessment answers are made available to learners before the assessment is conducted, unless this is expressly permitted by the approved course requirements

b. no course assessment questions, assessment tasks, assessment records, marking guides, model answers, or assessment answers are copied, photographed, removed, altered, or shared without authority; and

c. no learner is credited with completing the course unless the retained course documentation supports that the learner successfully completed the course in accordance with the approved course syllabus

12.4 The provider must comply with the Privacy Act 2020 and must manage personal information in accordance with this document, the approved course requirements, and the provider's quality management system.

12.5 Where a provider becomes aware that they have, or may have, breached the Privacy Act 2020, or where a privacy incident may have occurred, the provider must:

a. meet the relevant obligations under the Privacy Act 2020; and

b. as soon as practicable, notify NZTA

12.6 The provider must immediately notify NZTA if it becomes aware of any suspected false identity, false learner record, falsified assessment evidence, unauthorised certificate issue, or other matter that may affect the integrity of the driver licensing system.

13. Audit and inspection

13.1 NZTA may in writing require any provider to undergo an audit or inspection where NZTA reasonably considers it necessary in the interests of land transport safety, which in this context includes compliance with this document and any bespoke conditions, course integrity, register integrity, or administration of the driver licensing system. In such cases the provider must permit NZTA to enter the premises of the provider, including any course, training, or assessment venue, and:

a. audit or inspect any course-related documents, learner records, registers, assessment material, practical on-road records, complaints, health and safety records, privacy records, or other related material held by the provider in paper, electronic, or any other form; and

b. observe or monitor activities or work carried out by the provider in connection with the provision of approved Class 1 learner licence courses

13.2 If during an audit, inspection, monitoring activity, or at any other time, a duly authorised employee, agent, or representative of NZTA makes a written or verbal request for copies of any documents, records, information, or other material held by the provider in relation to the provision of approved Class 1 learner licence courses, the provider must provide such copies without delay or, if applicable, within any timeframe stipulated.

13.3 Notwithstanding clause 12.1 of this document, any duly authorised employee, agent, or representative of NZTA may, with or without prior notice to the provider, but at reasonable times, carry out inspections at or visits to any course venue of the provider in order to determine or ensure compliance with this document, appropriate legislation, provider approval conditions, approved course requirements, and any other relevant requirements.

13.4 An NZTA employee appointed as an enforcement officer may exercise the powers in section 113A of the Act. When exercising those powers, the enforcement officer may require the provider to produce without delay for inspection any relevant books or records in the provider's possession or control and may take extracts from or make copies of those records. The provider must comply with that requirement.

13.4 The provider must comply with any lawful requirement made in writing by NZTA arising from an audit or inspection under section 198 of the Act.

13.5 The provider must provide all such assistance as is necessary to facilitate any authorised employee, agent, or representative of NZTA in respect of any audit or inspection requirements.

13.6 NZTA, where appropriate, may uplift any original course documentation. Where this occurs, NZTA will issue a receipt to the provider for the documentation uplifted. Should the provider require it, NZTA will send the provider copies of the documentation uplifted.

13.7 The provider must not obstruct, delay, alter, destroy, withhold, or falsify any record, certificate, assessment evidence, register, or other information requested by NZTA for audit, inspection, monitoring, investigation, or compliance purposes.

14. Complaints

14.1 The provider must have, maintain, and follow a complaints management process that covers complaints about course information, enrolment, training, assessment, completion decisions, certificates, provider, assessor or trainer conduct, safety, privacy, or any other matter relating to an approved Class 1 learner licence course.

14.2 The provider must ensure that information about how to make a complaint is readily available to learners before and during the course.

14.3 The provider must keep a complaints register in an accurate and current state and must make the register available to NZTA on request.

14.4 The complaints register must record sufficient information to identify each complaint, show how it was managed, and support NZTA monitoring, audit, and review.

14.5 The provider must acknowledge receipt of a complaint within three working days and must provide a written response once the complaint has been considered.

14.6 The provider must resolve complaints within 20 working days of receipt, unless there is a reasonable basis for a longer period. If a longer period is required, the provider must record the reason and keep the complainant informed.

14.7 The written response must explain the outcome and advise the complainant that they may ask NZTA to review the matter if they are dissatisfied with the provider's response.

14.8 The provider must retain the complaint, any supporting information, investigation notes, outcome records, and written response for at least 18 months from the date the complaint was received, unless a longer period is required by law, the provider approval letter, or NZTA.

14.9 The provider must immediately refer to NZTA any complaint that, if proven, may affect personal safety, public safety, serious improper conduct, course integrity, certificate integrity, privacy, deliberate non-compliance, criminal conduct, or the provider's ongoing fitness and propriety and skills, training and experience.

15. Notice of non-compliance

15.1 Where NZTA is satisfied that the provider is not maintaining acceptable standards in respect of conducting an approved Class 1 learner licence course in accordance with this document, appropriate legislation, approved course requirements, provider approval conditions, or any other relevant requirement, NZTA may give the provider notice in writing to rectify the non-compliance.

15.2 Where any notice is given under clause 14.1 of this document, the provider must rectify the non-compliance specified in that notice within the time specified in that notice or, if no such time is specified, within a reasonable time.

15.3 Despite clause 14.1 of this document, where the non-compliance is serious, NZTA may:

a. suspend the provider from conducting approved Class 1 learner licence courses until such time as NZTA is satisfied that the non-compliance has been rectified; or

b. take immediate revocation or suspension action in relation to any provider approval.

15.4 The provider must provide NZTA with evidence that the non-compliance has been rectified if requested by NZTA.

16. Notification of changes to conditions of approval or course requirements

16.1 NZTA may from time to time notify providers of changes in relation to this document, provider approval conditions, and/or approved Class 1 learner licence course requirements. Note that under

clauses 102(5) to (7) of the Land Transport (Drivers Licensing) Rule 1999, the Director may also either; impose additional conditions under this SOAC at any time; and/or impose specific 'bespoke' conditions on a course provider that does not apply to other providers and/or revoke /amend these conditions or any bespoke conditions. Upon notification of such changes, the provider must implement and comply with the updated version of this document. Notification of changes will be deemed to be served in accordance with section 21 of this document.

17. Health and safety

17.1 The provider must ensure that courses conducted under its approval are conducted in a manner that:

a. avoids harm to the provider, learner, trainers, assessors, staff, passengers where applicable, other road users, and any other person; and

b. complies at all times with the Health and Safety at Work Act 2015

17.2 The provider must manage health and safety risks associated with approved course activities in accordance with the Health and Safety at Work Act 2015, the approved course requirements, and the provider's quality management system.

17.3 Where a provider becomes aware that they have, or may have, breached any provision of the Health and Safety at Work Act 2015, the provider must:

a. in the first instance, meet the relevant obligations under the Health and Safety at Work Act 2015; and

b. as soon as practicable, notify NZTA of the situation

17.4 Where the provider fails to comply with the Health and Safety at Work Act 2015, NZTA may suspend or revoke the provider's approval as specified in section 18 of this document.

17.5 The provider must record any health and safety incident, near miss, practical driving intervention, or abandoned practical driving activity that occurs during course delivery and must make those records available to NZTA on request.

18. Voluntary surrender of course provider approval

18.1 Where any provider intends to cease conducting approved Class 1 learner licence courses, they must advise NZTA as soon as practicable.

18.2 Once a provider has ceased conducting approved Class 1 learner licence courses, they must forward any course documentation, registers, unused certificates, and any other material required by NZTA in accordance with section 19 of this document to NZTA.

19. Appeal provisions

19.1 Where NZTA has suspended or revoked the provider's approval, the provider has the right to appeal the decision through the District Court in accordance with section 106 of the Land Transport Act 1998.

20. Return of property

20.1 Where NZTA has revoked the provider's approval, the provider must, within seven days of the date of notification of that decision, return any unused course completion certificates to NZTA.

20.2 When a provider ceases to conduct approved Class 1 learner licence courses, including because its approval has expired, the provider must, on request of NZTA and within the timeframe specified, forward all completed learner course documentation, learner course registers, trainer and assessor registers, unused course completion certificates, and any other stipulated data or material for the period specified in the notice to NZTA.

20.3 The provider, on application, may receive a full refund for the cost of any unopened and unsoiled packets of returned course completion certificates, where those certificates are the current version.

21. Course fees

21.1 The provider shall set its own course fees.

21.2 The provider must ensure that course fees, refund arrangements, cancellation rules, and any additional charges are made clear to learners before enrolment.

22. Assignment

22.1 An approval as a course provider cannot be transferred, assigned or leased to any person under clause 103C of the Land Transport (Driver Licensing) Rule 1999.

22.2 The practical implication includes a revoked course provider cannot employ or contract current course providers to work for them. This is because they would be a person in control and would not be fit and proper.

23. Relationship between parties

23.1 The relationship between NZTA and an approved Class 1 learner licence course provider derives from an approval in accordance with statutory powers and shall not be deemed to be that of employer/employee, joint venture, partnership or otherwise.

24. Exchange of information

24.1 The provider agrees to the lawful exchange of information between NZTA and any relevant agency, organisation, or person where that exchange is reasonably necessary for provider approval, monitoring, audit, investigation, compliance, course integrity, certificate integrity, or administration of the driver licensing system.

24.2 The information that may be exchanged includes information about the provider, trainers, assessors, learners, course delivery, course records, registers, course assessments, results, notices of course completion, complaints, incidents, audit findings, and any other matter relevant to the provider's approval.

24.3 All information exchanges, retention of data and access must comply with the Privacy Act 2020.

25. Exclusion of liability

25.1 NZTA shall not be liable whether in tort, contract or on some other basis, for any direct, indirect, or consequential damage or loss suffered or incurred by the provider, any person directly or indirectly involved with the provider's business, any learner, or any third party, including any liability in connection with a course not performed competently or a course completion certificate issued contrary to this document, the Act, the Rule, regulations, approved course requirements, or any condition of approval.

26. Indemnity

26.1 The provider shall indemnify NZTA against all losses, liabilities, claims, costs, and expenses that may result directly or indirectly from the provision of, or failure to competently conduct, approved Class 1 learner licence courses, or from any other act or omission of the provider, any person acting on behalf of the provider, or any other person directly or indirectly involved with the provider's business.